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County: los-angeles

Division: Civil Law and Motion

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

Mom v. ECAM Technologies Corp.

25STCV33526

Dept. 12 SSC

Hon.
Carolyn B. Kuhl

Date
of Hearing: July 15, 2026

Defendant’s Motion to Compel
Arbitration and to Stay Proceedings

Tentative
Ruling: The Motion is granted. The court compels arbitration of
Plaintiff’s individual claims, including Plaintiff’s individual PAGA
claim. The court dismisses the class
claims. The court stays the
action—including the non-individual PAGA claims—pending the arbitral
proceedings.

Plaintiff filed this putative class action on November 13, 2025, alleging causes of action based on alleged violations of the Labor Code. On March 2, 2026, Plaintiff added a PAGA claim.

Defendant now moves for an order: (1) compelling Plaintiff's individual claims to arbitration; (2) striking Plaintiff's class allegations; and (3) staying Plaintiff's non-individual PAGA claims.

The Motion is based on an arbitration agreement electronically signed by Plaintiff in connection with his employment on February 23, 2021 (Agreement). (Laurreign Decl., Ex. B.) The Agreement is between Plaintiff and the business entity Whelan Security of California, Inc. (Whelan). The Agreement states:

Employee and the Company mutually agree to resolve by arbitration all employment-related claims, controversies, or other disputes arising out of Employee's employment or separation (collectively, the "Covered Claims") that either party may have against the other, including the Company's parent, subsidiaries, or affiliates or any of their current and former owners, officers, directors, shareholders, representatives, attorneys, members, managers, employees, agents, assigns, contractors, or assigns in their capacity as such or otherwise.

(Laurreign Decl., Ex. B, at p. 1.) The Agreement includes a representative and class action waiver. (Laurreign Decl., Ex. b, at p. 4.) The Agreement states that it is governed by the Federal Arbitration Act (FAA). (Laurreign Decl., Ex. b, at p. 3.)

Plaintiff does not dispute that he signed the Agreement, or that the Agreement is governed by the FAA. Plaintiff raises two main arguments in opposition to the Motion. First, Plaintiff argues that Defendant, who is not a signatory to the Agreement, cannot enforce the Agreement. Second, Plaintiff argues that the Agreement is unenforceable on grounds of unconscionability. Plaintiff lastly argues that, if the court is inclined to compel arbitration, the non-individual PAGA claims should not be stayed.

Defendant May Enforce the Agreement Under the Agreement's Explicit Terms

Plaintiff contends that he "did not consent or agree to arbitrate his claims against Defendant, as Plaintiff did not enter into an arbitration agreement with Defendant, but rather another party." (Pl's Opp., at p. 2.) The Agreement does not support this interpretation.

As noted above, the signatory of the Agreement was Whelan. The evidence before the court shows that Whelan is the previous name for the entity GardaWorld Security Services of California, Inc. (GardaWorld). (Laurreign Decl., ¶ 3.) Defendant "is an affiliate of" GardaWorld. (Laurreign Decl., ¶ 3.) Defendant and GardaWorld "share a grandparent company." (Laurreign Decl., ¶ 3.) Plaintiff has not objected to this evidence. Nor has Plaintiff introduced any evidence suggesting that Defendant and GardaWorld are not affiliate companies. And it is undisputed that the signing of the Agreement was ultimately done in connection with Plaintiff's employment with Defendant.

"California law permits third party beneficiaries to enforce the terms of a contract made for their benefit. [Citation.] … A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it. (Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1021-1022, internal citations and quotation marks omitted.) "The test for determining whether a contract was made for the benefit of a third person is whether an intent to benefit a third person appears from the terms of the contract. … If the terms of the contract necessarily require the promisor to confer a benefit on a third person, then the contract, and hence the parties thereto, contemplate a benefit to the third person. The parties are presumed to intend the consequences of a performance of the contract." (Id. at p. 1022, internal citations and quotation marks omitted.) Courts "applying basic contract interpretation" under California law have thus held that an "affiliate" company of a signatory to an arbitration agreement can enforce that agreement if the agreement expressly covers claims between the employee and the signatory's "affiliates." (Thomas v. Cricket Wireless, LLC (N.D. Cal. 2020) 506 F.Supp.3d

891, 901.)

Under the Agreement, Plaintiff agreed to arbitrate all employment disputes between himself and Whelan’s (i.e., GardaWorld’s) “parent, subsidiaries, or affiliates.” (Laurreign Decl., Ex. B, at p. 1.) Defendant is an affiliate of GardaWorld and thus an intended beneficiary of the Agreement who may move to enforce it.

In arguing that Defendant cannot enforce the Agreement, Plaintiff relies heavily on Toothman v. Redwood Toxicology Laboratory, Inc. (2026) 120 Cal.App.5th 411 (Toothman). (Pl’s Opp., at pp. 2-3.) Plaintiff’s reliance on Toothman is misplaced. Like the Agreement here, the agreement in Toothman covered claims between the plaintiff employee and the signatory “Company,” as well as the signatory’s “affiliates, subsidiaries and parent companies.” (Toothman, at p. 416.) Unlike here, however, the party moving to compel arbitration in Toothman was not an “affiliate” of the signatory, but rather a “client” of the signatory that “shared [no] ownership or means of control with” the signatory. (Id. at p. 420.) The First District Court of Appeal thus “agree[d] with the trial court that the parties did not intend to include ‘Clients’ like [the defendant] in the Arbitration Agreement’s definition of ‘Company.’ ” (Id. at p. 421.) The holding in Toothman has no application to the facts here, where it is undisputed that Defendant is an “affiliate” of the signatory company.

Plaintiff Fails to Meet His Burden of Showing that the Agreement is Unconscionable

Both procedural and substantive unconscionability must be shown by Plaintiff for the defense of unconscionability to be established.¿ (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 125.) “A court should consider substantive unconscionability only after procedural unconscionability has been established” by the party opposing arbitration. (Jenkins v. Dermatology Management, LLC (2024) 107 Cal.App.5th 633, 641 (Jenkins).) Because Plaintiff has failed to demonstrate any level of procedural unconscionability, this court cannot conclude that the Agreement is unenforceable.

Plaintiff claims that the Agreement is procedurally unconscionable because it is a contract of adhesion. As Plaintiff states, “[a]n adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power on a take-it-or-leave-it basis.” (Pl’s Opp., at p. 4, internal citations and quotation marks omitted; emphasis added.) As Plaintiff further correctly observes, contracts are procedurally unconscionable “adhesive contracts” when they are “imposed as a condition of employment.” (Pl’s Opp., at p. 4.)

However, Plaintiff fails to present any evidence tending to show that the Agreement is a procedurally unconscionable contract of adhesion. Plaintiff presents no evidence at all in support of his Opposition, instead incorrectly suggesting that Defendant must disprove unconscionability. (See, e.g., Pl’s Opp., at p. 4 [stating that “no evidence suggests that Plaintiff could either reject or negotiate the terms of the preprinted agreement”].) Elsewhere, Plaintiff bases his argument on “the fact that there was no bargaining over terms between the parties”; yet, Plaintiff offers no evidence in support of this factual claim. (Pl’s Opp., at p. 5.)

Plaintiff identifies no portion of the Agreement stating that it was offered on a “take-it-or-leave-it” basis. The text of the Agreement supports the opposite conclusion. The Agreement offers Plaintiff the right to opt out of the Agreement. (Laurreign Decl., Ex. B, at p. 6.) This “right to opt out” is prominently listed in its own paragraph of the Agreement. (Laurreign Decl., Ex. B, at p. 6.) The Agreement is thus not a contract of adhesion, but instead specifies that Plaintiff was not required to be bound by the Agreement’s terms in order to gain employment with GardaWorld’s predecessor. “The ability to opt out of arbitration within a reasonable timeframe fatally undermines [the] position that [an] arbitration agreement imposes adhesive terms on customers.” (California Crane School, Inc. v. Google LLC (N.D. Cal. 2024) 722 F.Supp.3d 1026, 1034.) Moreover, the Agreement allowed Plaintiff up to ten days after the signing of the Agreement to opt out, and made clear that Plaintiff had “the right to discuss this

Arbitration provision with independent counsel of Employee's choice.” (Laurreign Decl., Ex. B, at p. 6.) Because Plaintiff had ten days to determine whether he wanted to be bound by the optional Agreement, Plaintiff cannot show that the Agreement is an adhesive contract.

In support of its argument that the Agreement is procedurally unconscionable, Plaintiff relies on Jenkins. However, the agreement in Jenkins was found to be procedurally unconscionable because the evidence led the court to conclude that “[a] reasonable person in [the plaintiff employee’s] position would have concluded that the Agreement was a take-it-or-leave-it condition of employment that could not be modified or refused.” (Jenkins, supra, 107 Cal.App.5th at p. 642.) The same conclusion cannot be reached here.

The Court Stays the Non-Individual PAGA Claims

Plaintiff acknowledges that any stay of the non-individual PAGA claims “is entirely within the Court’s discretion.” (Pl’s Opp., at p. 9.) This court exercises that discretion to stay the non-individual PAGA claims pending the arbitral proceedings.

The California Supreme Court has provided guidance regarding whether non-individual PAGA claims may be stayed when a plaintiff’s individual claims are compelled into arbitration:

First, the trial court may exercise its discretion to stay the non-individual [PAGA] claims pending the outcome of the arbitration [of the individual PAGA claims] pursuant to section 1281.4 of the Code of Civil Procedure. Following the arbitrator’s decision, any party may petition the court to confirm or vacate the arbitration award under section 1285 of the Code of Civil Procedure. If the arbitrator determines that [the plaintiff] is an aggrieved employee in the process of adjudicating his individual PAGA claim, that determination, if confirmed and reduced to a final judgment (Code Civ. Proc., § 1287.4), would be binding on the court, and [the plaintiff] would continue to have standing to litigate his nonindividual claims. If the arbitrator determines that [the plaintiff] is not an aggrieved employee and the court confirms that determination and reduces it to a final judgment, the court would give effect to that finding, and [the plaintiff] could no longer prosecute his non-individual claims due to lack of standing.

(Adolph v. Uber Technologies, Inc. (2023) 14 Cal.5th 1104, 1123-1124.) A stay is appropriate here, given that Plaintiff’s status as an “aggrieved employee” under PAGA—and thus Plaintiff’s ability to pursue the non-individual PAGA claims—is likely to be determined by the arbitrator in connection with Plaintiff’s individual claims.